

**CHAPTER xxviii.**

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to Allan Glen's School. A.D. 1912.
[25th June 1912.]

WHEREAS His Majesty's Secretary for Scotland has made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament: 62 & 63 Vict.
c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirmation
of Order in
schedule.

2. This Act may be cited as the Allan Glen's School Order Confirmation Act 1912. Short title.

A.D. 1912.

SCHEDULE.

ALLAN GLEN'S SCHOOL.

Provisional Order to authorise the Royal Technical College Glasgow to transfer Allan Glen's School Glasgow and the management thereof together with its endowment subject to certain deductions to the School Board of Glasgow to provide for the administration and management of the said School by the said School Board to amend the scheme of the said College and for other purposes.

WHEREAS the commissioners appointed under the provisions of the Educational Endowments (Scotland) Act 1882 framed and issued a Scheme No. 110 (in this Order called "the said scheme") in virtue of the powers conferred upon them by the said Act which scheme was approved of by Her late Majesty Queen Victoria by Order in Council dated the twenty-sixth day of November one thousand eight hundred and eighty-six:

And whereas in virtue of the said scheme the endowment known as Allan Glen's Institution was amalgamated with the endowments known as Anderson's College the Young Chair of Technical Chemistry in connexion with Anderson's College the College of Science and Arts and the Atkinson Institution and was and is now held and administered (together with certain annual payments made under schemes under the said Act of 1882 by the governors of Hutcheson's Educational Trust and the Glasgow City Educational Endowments Board to the governing body constituted for purposes of technical education in Glasgow by any scheme under the said Act of 1882) for the purposes with the powers and under the conditions and provisions set forth in the said scheme by the governing body therein constituted which was incorporated by the name of "The Governors of the Glasgow and West of Scotland Technical College":

And whereas the value of the said endowment known as Allan Glen's Institution thus amalgamated with the aforesaid endowments amounted at the date of the said amalgamation to

twenty-six thousand nine hundred and fifty-eight pounds nine shillings and sixpence exclusive of the value of Allan Glen's School of which no valuation was made or stated: A.D. 1912.

And whereas the said governors as authorised under the provisions of the fifty-fifth section of the said scheme expended out of the said amalgamated endowment a sum of eight thousand pounds on additions to and improvements on the buildings of Allan Glen's School:

And whereas certain alterations were made on the said scheme by decree of the Court of Session on the twelfth day of July one thousand eight hundred and ninety and by section 2 of the said alterations the said governors were authorised to apply the balance standing in the accounts of the amalgamated endowment for the year ending the thirty-first day of July one thousand eight hundred and eighty-nine at the credit of the account kept of the sums mentioned in the fifty-sixth section of the said scheme in crediting the general account of the amalgamated endowment with one-thirtieth part of the said sum of eight thousand pounds expended as aforesaid and to apply the remainder of the said balance in payment pro tanto of interest at the rate of four and a quarter per centum per annum on the said sum of eight thousand pounds up to the thirty-first day of July one thousand eight hundred and eighty-nine:

And whereas by section 3 of the said alterations on the said scheme the said governors were authorised in the accounts for the year ending the thirty-first day of July one thousand eight hundred and ninety and in the accounts of any subsequent year to apply such portion as they considered proper of any balance at the credit of the said account mentioned in the fifty-sixth section of the said scheme in relieving the said general account (1) of the balance of interest on the said sum of eight thousand pounds which had not been met under the provisions of section 2 of the said alterations and (2) of the balance then outstanding of the said sum of eight thousand pounds which amounted to seven thousand seven hundred and thirty-three pounds six shillings and eightpence and of the interest thereon subject to the provision that the said governors should not apply larger sums than should be sufficient to meet year by year the yearly instalments of four hundred and sixty-eight pounds eighteen shillings

A.D. 1912. and threepence by which the said sum of seven thousand seven hundred and thirty-three pounds six shillings and eightpence would be replaced with interest at the aforesaid rate in twenty-nine years from the thirty-first day of July one thousand eight hundred and eighty-nine :

And whereas the said governors have from time to time applied sums at the credit of the said account mentioned in the fifty-sixth section of the said scheme in so relieving the said general account and the amount outstanding of the said sum of eight thousand pounds as at the thirty-first day of July one thousand nine hundred and eleven being the close of the last financial year of the said governors is two thousand seven hundred and eighty-eight pounds fifteen shillings and elevenpence :

And whereas it is expedient in the interests of education that the said endowment known as Allan Glen's Institution with Allan Glen's School and the said additions and improvements under deduction of the said sum of two thousand seven hundred and eighty-eight pounds fifteen shillings and elevenpence and of the sum of one thousand nine hundred and thirty-nine pounds ten shillings being a debit balance of expenditure over receipts connected with Allan Glen's School as at the said thirty-first day of July one thousand nine hundred and eleven standing in the books of the said governors should be transferred to and vested in and be administered and managed by the School Board of Glasgow and that alterations should accordingly be made on the said scheme so far as the same relates to the said endowment and that the said School Board should be authorised to accept the said transfer and to come under the obligations as to scholarships and bursaries herein-after provided and to exercise with regard to Allan Glen's School and the endowment thereof the powers conferred by this Order and also those possessed by school boards under the Education (Scotland) Acts 1872 to 1908 so far as the same are not inconsistent with the provisions of this Order and from time to time to apply the fund under the said Education Acts known as the school fund of the said School Board in making good the deficiency (if any) in the income of Allan Glen's School all as herein-after provided and that the said governors should be exonerated and discharged as herein-after provided :

And whereas the said governors at a meeting held on the ninth day of May one thousand nine hundred and eleven

resolved that the said transfer should be made subject to the A.D. 1912.
following conditions viz.:—

“ (a) That the name ‘Allan Glen’s School’ shall be re-
“ tained ;

“ (b) That the capital of the endowment of the school shall
“ be transferred to the School Board in accordance
“ with the financial statement submitted to the
“ board upon condition that the School Board
“ shall take over the obligations of the Technical
“ College under sections 67 68 and 69 of the
“ scheme of the college ;

“ (c) That the school shall be carried on as a science high
“ school *pari passu* with the high school as far as
“ possible on its present lines consistently with the
“ terms of the Education Acts and the ordinary
“ practice of the board” ;

and such resolution was approved of by the Scotch Education
Department and by the said School Board subject to the terms
herein-after contained which were subsequently approved by the
said governors :

And whereas it is expedient that the said governors should
be authorised to set apart from the said amalgamated endowment
the said school with the said additions and improvements and
the property and assets specified in the schedule to this Order
and should be authorised to transfer the same to the said School
Board under deduction of the said sums of two thousand seven
hundred and eighty-eight pounds fifteen shillings and eleven-
pence and one thousand nine hundred and thirty-nine pounds
ten shillings which said sums it is expedient that the said
governors should be authorised to retain and apply to the general
account of the remainder of the said amalgamated endowment
under their charge and the costs of this Order :

And whereas George Gilbert Ramsay LL.D. Emeritus
Professor of Humanity in the University of Glasgow is the only
surviving governor elected by the trustees of Allan Glen’s
Institution in terms of the third section of the said scheme
and has been associated with the administration of the said
school for many years and has always taken a deep interest
in its affairs and it is expedient in order to preserve as far as
possible the continuity of the administration of the said school

A.D. 1912. that any committee of management appointed by the said School Board should have power to call in the said George Gilbert Ramsay for advisory purposes :

And whereas it is expedient in order that the management of the remainder of the said amalgamated endowment should not suffer that the governors holding office in respect of election by the trustees of Allan Glen's Institution and their successors in office should continue to hold office :

And whereas the name of the Glasgow and West of Scotland Technical College was by decree of the Court of Session dated the twenty-first day of December one thousand nine hundred and eleven altered to "The Technical College Glasgow" :

And whereas on the ninth day of February one thousand nine hundred and twelve His present Majesty directed that the college should thenceforth be known as "The Royal Technical College Glasgow" :

And whereas it is expedient that the other provisions in this Order contained should be made :

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899 :

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows :—

Short title
and com-
mencement
of Order.

1. This Order may be cited as the Allan Glen's School Order 1912 and shall commence and have effect from and after the date of the passing of the Act confirming the same which date is in this Order referred to as "the commencement of this Order."

Interpreta-
tion.

2. The following words and expressions in this Order shall have the respective meanings herein-after assigned to them unless there be something in the subject or context inconsistent with or repugnant to such meaning (that is to say) :—

"The endowment" means the property and assets specified in the schedule to this Order under deduction of—

(1) The above-mentioned sum of two thousand seven hundred and eighty-eight pounds fifteen shillings and elevenpence; and

(2) The above-mentioned sum of one thousand nine hundred and thirty-nine pounds ten shillings; A.D. 1912.

both of which sums are shown in the said schedule;

“The governors” mean the governors of the Royal Technical College Glasgow;

“The School Board” means the School Board of Glasgow;

“The school” means Allan Glen's School Glasgow;

“The Education Department” means the Scotch Education Department;

“The Education Acts” mean the Education (Scotland) Acts 1872 to 1908 and any Act or Acts amending the same.

3. As from and after the first day of August one thousand nine hundred and eleven the school and the endowment shall be and the same are hereby separated from the amalgamated endowment of the governors and transferred to and vested in the School Board without the necessity of any new conveyances or instruments or further process of law and shall be accepted by the School Board as valued at the sums stated in the schedule to this Order. *Transfer of property.*

4. The school and the endowment shall from and after the commencement of this Order be administered and managed by the School Board. The School Board may appoint in connexion with the school a committee of management (with power to the said committee to call in for advisory purposes George Gilbert Ramsay LL.D. Emeritus Professor of Humanity in the University of Glasgow or any other person) The said committee may consist of the whole School Board or of such number thereof as the School Board may appoint and the number and quorum of such committee if so appointed and the mode of conducting business at its meetings shall be regulated by the School Board. *School Board to be governing body of school and endowment with power to appoint committee.*

5. The School Board may feu or lease the lands and estates belonging to the endowment at such feu-duty or rent as they deem expedient or may sell and convey the same either by public roup or private bargain and at a capital price or subject to a ground annual and may sell and realise all stocks bonds and dispositions in security mortgages and other property of whatever kind heritable or moveable belonging to the endowment and may discharge all securities and they shall invest the moneys obtained by such sales or discharges in accordance with *Power to sell or feu or lease.*

A.D. 1912. the provisions of the section of this Order of which the marginal note is "Investment of funds."

Investment
of funds.

6. The School Board may in addition to the statutory and common law powers of investment of trustees by the law of Scotland retain the present investments constituting the endowment for such time however long as they think expedient or invest the funds of the endowment in the purchase of heritable or real property or so far as regards proceeds from any sale of the school itself (which comprises items 1 and 2 of the schedule to this Order) also in the erection of school buildings or in the equipment thereof or may deposit the funds of the endowment in any bank having its head office in Scotland and may vary and change all such investments.

First meet-
ing of School
Board.

7. Within two months from the commencement of this Order a meeting of the School Board shall be held upon the summons of the chairman of the School Board at which or at any adjournment thereof the necessary arrangements shall be made for the conduct of the business of the school and the endowment.

Power of
governors
pending
transfer
to School
Board.

8. The governors shall continue to exercise all necessary acts of administration relative to the school and the endowment and shall carry on the school at the expense of the School Board and shall subject to the control of the School Board have all powers necessary therefor until the first meeting of the School Board is held under this Order or until such time not exceeding six months therefrom as the School Board may appoint and the governors shall from and after that meeting or at that time as the case may be wholly cease to exercise any right or power of administration over the school and the endowment and shall cause to be transferred to the School Board in such manner as the School Board may direct all the books deeds and papers and all cash balances (if any) and moveables belonging to the school and the endowment Provided always that the governors shall account to the School Board for any Government grants and school fees received by them while so carrying on the school.

Discharge of
governors.

9. From the date at which the governors shall have ceased to exercise any right or power of administration in terms of the immediately preceding section of this Order the governors and the individual members thereof are hereby absolutely exonerated

and discharged of all their past actings and intromissions as the governing body of the school and of the endowment thereof and of and from all obligations actions claims and demands in respect of the same. A.D. 1912.

10. All contracts and engagements with the staff of teachers and servants engaged in the school at the first day of August one thousand nine hundred and eleven shall as from that date be transferred from the governors to the School Board and such teachers and servants shall as from that date be held to have entered the service of the School Board and be subject to the regulations and control of the School Board. Vested interests.

11. Subject to the provisions of the section of this Order of which the marginal note is "Annual distribution of bursaries and scholarships and reductions and modifications thereof" the rights of the students and pupils holding bursaries and scholarships at the school at the first day of August one thousand nine hundred and eleven are hereby saved and reserved and such bursaries and scholarships shall be held by them under the School Board subject to the rules byelaws and regulations of the governors in force at the commencement of this Order. Provision as to holders of bursaries and scholarships.

12. The scholarships and bursaries referred to in the sections of this Order of which the marginal notes are respectively "Free scholarships" "Bursaries" "University or technical school or college bursaries" "Forfeiture of bursaries or scholarships" and "Annual distribution of bursaries and scholarships and reductions and modifications thereof" shall be a first charge on the income of the endowment subsisting for the time being other than the school itself and the School Board after paying the necessary expenses of administration and management and the burdens and taxes affecting the school and the endowment shall apply the balance of income (if any) of the endowment together with any fees or Government grants in the manner provided by this Order including (without prejudice to the generality) maintenance of the school and upkeep and repair of buildings and any deficiency of income shall be made good by the School Board from the fund under the Education Acts known as the school fund The accounts connected with the endowment the management of the school and the payment of scholarships and bursaries shall be kept made up balanced completed audited liable to inspection and Application of income making good deficiency and regulations as to accounts.

A.D. 1912. otherwise in the same manner as the other accounts of the School Board.

School to be maintained.

13. The School Board shall subject to the provisions of the section of this Order of which the marginal note is "School to be carried on as a science school as far as possible" continue to maintain the school and that either in the buildings hitherto occupied by the school or in any other buildings either already or that may subsequently be acquired or erected by them and the school shall as heretofore be called "Allan Glen's School" in all time coming and the School Board shall subject to the provisions of this Order be entitled to charge pupils such fees as they may think expedient Provided always that no part of the capital of the endowment (other than the school itself) shall be applied in or towards meeting the cost of any such buildings or the equipment thereof.

School to be carried on as a science school as far as possible.

14. The School Board shall continue to carry on the school as a science high school *pari passu* with the High School of Glasgow for boys as far as possible on the lines under which it has been carried on by the governors but only so far as this can be done consistently with the provisions of this Order and the Education Acts and the ordinary practice of the School Board and so long as this can in the opinion of the Education Department be done to any good purpose When that cannot as aforesaid be done then the school shall be converted by the School Board into a primary or an intermediate or a secondary school or other school of whatever kind as the Education Department may determine.

Free scholarships.

15. Subject to the provisions of the section of this Order of which the marginal note is "Annual distribution of bursaries and scholarships and reductions and modifications thereof" the School Board shall establish not fewer than sixty free scholarships at the school The said free scholarships shall confer the right of free education in the secondary department (so long as there is such a department) of the school with books and stationery for such period not exceeding two years as the School Board may determine The said scholarships shall be open to such applicants as the School Board think suitable being boys whose parents or guardians require aid in giving them education and who are either desirous of entering the school or are pupils already attending the school and shall be awarded by

the result of a competitive examination in which the age of the competitors shall be taken into account The School Board shall fix the number of free scholarships in each year and the age or position at school of the competitors in such manner as they deem expedient.

A.D. 1912.

16. Subject to the provisions of the section of this Order of which the marginal note is "Annual distribution of bursaries and scholarships and reductions and modifications thereof" the School Board shall apply the annual sum of not less than two hundred pounds in establishing bursaries tenable at the school which shall be awarded by competitive examination among pupils at the school whose parents or guardians require aid in giving such pupils higher education The said bursaries shall be of such annual value not being less than five pounds or more than fifteen pounds as the School Board may determine and shall further confer the right of free education at the school with books and stationery The said bursaries shall be tenable for such period not exceeding three years as the School Board may determine The School Board may fix the competition for the said bursaries at such period or periods in the school curriculum as they may determine but not at a lower period in the school curriculum than may make the average age of the competitors as nearly as may be thirteen years.

Bursaries.

17. Subject to the provisions of the section of this Order of which the marginal note is "Annual distribution of bursaries and scholarships and reductions and modifications thereof" the School Board shall establish not fewer than three university or technical school or college bursaries each of the annual value of not less than twenty-five pounds These bursaries shall be awarded by competitive examination among pupils attending the school and shall be tenable for a period not exceeding three years at a university or day technical school or college approved by the School Board.

University
or technical
school or
college
bursaries.

18. If in the judgment of the School Board the holder of any bursary or scholarship shall be guilty of serious misconduct or fail to make reasonable progress the School Board may withdraw such bursary or scholarship and their determination in such case shall be final.

Forfeiture of
bursaries or
scholarships.

A.D. 1912.

Annual distribution of bursaries and scholarships and reductions and modifications thereof.

19. The School Board shall establish the bursaries and scholarships provided for by this Order in such manner as to secure that they shall be awarded in as nearly as possible equal numbers in each year but the School Board shall not be bound to expend in any year on the scholarships and bursaries referred to in the sections of this Order of which the marginal notes are respectively "Free scholarships" "Bursaries" and "University or technical school or college bursaries" more than the income of the endowment subsisting for the time being other than the school itself and shall accordingly have full power at all and any times to make such reductions and modifications on the said scholarships and bursaries or either of them as they may think expedient on that account.

Powers in Education Acts made applicable to School.

20. All the rights powers and privileges of a School Board under the Education Acts and otherwise are hereby conferred upon the School Board with regard to the school except so far as inconsistent with the provisions of this Order.

Sums to be retained by governors.

21. The said sums of two thousand seven hundred and eighty-eight pounds fifteen shillings and elevenpence and one thousand nine hundred and thirty-nine pounds ten shillings shall be retained by the governors and applied to any of the other purposes of the said scheme and of their proportion of the costs of this Order as provided for in the section of this Order of which the marginal note is "Costs of Order."

Alteration of existing scheme.

22. From and after the commencement of this Order sections 54 to 69 both inclusive of the said scheme and the alterations on the said scheme contained in the said decree of the Court of Session dated the twelfth day of July one thousand eight hundred and ninety and in general all provisions contained in the said scheme so far but so far only as affecting the school shall be and the same are hereby repealed Provided always that notwithstanding anything in this Order contained the governing body of the college as constituted in terms of section 3 of the said scheme as altered by section 1 of the alterations made thereon by decree of the Court of Session dated the tenth day of July one thousand nine hundred and two shall continue to comprise the four governors referred to in the said section 3 elected to hold office for their lives by the trustees of Allan Glen's Institution

and their successors in office elected or who may be elected A.D. 1912.
in accordance with the provisions of the said scheme.

23. The costs charges and expenses of and incident to the preparing for obtaining and confirming of this Order or otherwise in relation thereto shall be paid by the School Board and the governors in equal proportions out of any of their respective funds or revenues. Costs of Order.

The SCHEDULE referred to in the foregoing Order.

	£	s.	d.	£	s.	d.
1. Heritable property occupied as the former Allan Glen's School of which no valuation was made when the property was transferred to the governors in the year one thousand eight hundred and eighty-seven - - -						
2. Heritable property at 66-70 North Hanover Street Glasgow now absorbed in the school extension Amount of valuation when transferred to the governors - - -				3,700	0	0
Together with all buildings thereon and additions to and improvements on either 1 or 2.						
Amount expended by the governors on additions to and improvements on the school -	8,000	0	0			
Less amount repaid out of the school funds of the governors - - -	5,211	4	1			
				2,788	15	11
				6,488	15	11
3. Heritable property at 23-33 Marlborough Street Glasgow Amount of valuation when transferred to the governors - - -				1,441	5	0
4. Ground annual of 19 <i>l.</i> 13 <i>s.</i> 4 <i>d.</i> payable from subjects in Dempster Street Glasgow Amount of valuation when transferred to the governors - - -				432	13	4
5. Heritable property in Perth Street Glasgow in the possession of the governors in virtue of a bond and disposition in security the amount of which was - - -	1,200	0	0			
Amount expended by the governors on capital improvements - - -	480	3	1			
				1,680	3	1
Carried forward - - -				10,042	17	4
				13		

A.D. 1912.

	£	s.	d.	£	s.	d.
Brought forward -				10,042	17	4
6. Amount outstanding under bond and disposition in security over 82-94 White Street and 32 Logie Street Govan -				2,650	0	0
7. Marketable securities as may be agreed on to the value of	17,054	8	1			
	£	s.	d.			
Less (1) Amount of cost of additions to and improvements on the school outstanding at the thirty-first day of July one thousand nine hundred and eleven -	2,788	15	11			
Less (2) Balance at the debit of the school revenue Account at the thirty-first day of July one thousand nine hundred and eleven -	1,939	10	0			
				4,728	5	11
					12,326	2 2
						£25,018 19 6

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